

The complaint

Mr K complains that AXA Insurance UK Plc (AXA) declined his claim for damage to his roof which allowed water ingress to his property.

What happened

Mr K had commercial and residential landlords insurance for his tenanted property with AXA. He claimed under his policy when the ceiling beneath the flat roof collapsed under the weight of water. He believed the water had run off his neighbour's new, higher roof and pooled on the flat roof, seeping through to the ceiling below.

AXA accepted Mr K's claim for the interior damage and alternative accommodation for his tenant. However, it declined cover for the roof damage itself because it was more than two years since his last roof inspection. The policy conditions set out a requirement for an inspection of the flat roof every two years.

Mr K complained to AXA. He said he hadn't been able to arrange the inspection when it became due because of Covid restrictions, and he also complained about AXA's delays handling his claim.

AXA didn't think there'd been any significant or avoidable delays in its handling of the claim. However, as a gesture of goodwill and in recognition of some slightly delayed responses due to backlogs, it offered Mr K £50. Mr K wanted AXA to accept his claim for the roof damage, so he brought his complaint to this service.

Our investigator didn't uphold Mr K's complaint. She thought there'd been sufficient time for Mr K to arrange a roof inspection before the Covid restrictions and which would've allowed him to meet the policy conditions. Because he hadn't met those conditions, she thought it was fair for AXA to decline the roof part of his claim. Our investigator also found that the evidence supported AXA's view that there hadn't been any significant avoidable delays, so she didn't ask it to do any more.

Mr K didn't agree. Although he accepted Covid restrictions didn't start until after his roof inspection was due, he said it had already become difficult to find contractors to do the work. Therefore, he didn't think he was at fault for not meeting the policy condition. Further, Mr K pointed out that the surveys only concluded that part of the reason for the water ingress was wear and tear, so he thought his claim for the additional rainfall from his neighbour's roof should be covered under his policy.

The complaint was passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

While I realise this is not the outcome Mr K hoped for, I've decided not to uphold his complaint. I'll explain why.

Policy conditions

The first issue is that Mr K doesn't think it was fair that AXA declined his claim for the roof repairs because he was prevented from meeting the policy conditions by Covid restrictions.

The water ingress happened in May 2020. The previous roof inspection was carried out in January 2018. That means the next inspection would've been due by January 2020. While Mr K says his ability to get a contractor to carry out the inspection was hindered by Covid restrictions, it's worth noting that the restrictions didn't come into force until March 2020. Therefore, the roof inspection was already two months overdue before the restrictions.

I understand Mr K was finding it difficult to get a contractor to complete the inspection around the Christmas period. I have no reason to doubt that. However, it was his responsibility to meet the policy conditions, and the inspection could've been done any time before the January deadline.

In summary, I'm satisfied that Mr K had time to arrange the roof inspection before it became overdue, and failing to do so meant he didn't meet the conditions of his policy.

Claim

AXA paid Mr K's claim for the interior work and the tenant's alternative accommodation. But it declined Mr K's claim for the roof damage because he hadn't met the policy conditions.

I've already concluded that Mr K didn't meet the conditions, so I've looked at the policy to see what options were available to AXA. The policy says:

Flat roof condition

Any flat portions of the roof of the buildings are to be inspected once every 2 years by a competent roofing contractor and any recommendations implemented. If you do not comply with this condition you will not be covered and we will not pay your claim.

I'm satisfied that the policy makes it clear to Mr K that failure to meet the flat roof policy condition will result in him not being covered and AXA wouldn't pay the claim.

AXA has declined Mr K's claim and refused to pay for the roof damage repairs. As that's in line with the policy, I see no reason to ask AXA to do anything more here.

Surveys

Mr K said the survey indicated that wear and tear was only part of the reason for the water ingress. While that may be the case, I think it was reasonable for AXA to rely on the report which said that the water was pooling because it had nowhere else to drain away to, and it entered the property because of the wear and tear. This indicates that the wear and tear and pooled water were the main reasons the damage occurred. As pooling water due to failure to maintain the roof properly is not an insured peril, I'm satisfied that it was reasonable for AXA to decline that part of the claim.

Delays

AXA paid Mr K £50 for the delayed response times to contact during the Covid restrictions. Having considered the evidence, it shows that the delays were minimal and, for the most part, AXA handled Mr K's claim within timescales I'd expect to see for claims of this type.

Therefore, I'm satisfied that AXA's offer was fair in the circumstances and I see no reason to ask it to pay more.

Overall, I can understand that Mr K is frustrated because his property was damaged after rainwater pooled on the roof. But the evidence indicates that the ingress was due, mainly, to the wear and tear already present on the flat roof. And because Mr K hadn't met the policy conditions of have a roof inspection every two years, AXA fairly declined the claim for the roof in line with the policy.

I won't be asking AXA to do any more.

My final decision

For the reasons given above, my final decision is that I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr K to accept or reject my decision before 18 October 2022.

Debra Vaughan
Ombudsman